

Qualification and Oath

Under Article 158, the Constitution lays down the following conditions for the Governor's office

- He must be a citizen of India.
- He should be more than 35 years of age.
- He should not be a member of either House of Parliament and the State Legislature.
- He must not hold any government office of profit.
- The oath to the Governor is given by the Chief Justice of High Court (Article 159).

Powers

Executive Powers

- Appoints the Council of Ministers (on the advice of CM).
- Appoints the Advocate General, the Chairman and Members of the State Public Service Commission.
- Acts as the representative of the President.

Legislative Powers

- He summons and prorogues the session of the State Legislature.
- He can dissolve the State Assembly before the expiry of its full term.
- He addresses the first session of the Legislature after every election and first session every year.
- He can issue ordinances, appoints 1/6th members of Legislative Council on the advice of Chief Minister.
- Nominates **one member** from the Anglo-Indian community (if not properly represented).
- Gives assent to the bills to make it a law.

The Governor has three alternatives, which are as follows :

- He can give his assent to the Bill.
- He can return it (other than a Money Bill) for reconsideration, suggestion, alterations. But, such bills when passed again, have to be given assent.
- He may reserve the bill for the assent of the President.

Financial Powers

Ensures that the budget is laid. Money Bills can be introduced on his recommendation only.

Judicial Powers

- He is consulted by the President of India for the appointment of judges in the High Court.
- Appoints judges of courts below the High Court, can grant pardon, (same point) reprieve or remission of punishment for offence against state laws.

Emergency Powers

- The Governor exercises important power during emergency, which is also known as 'President Rule' (Article 356).

- His powers are exercised by the Council of Ministers headed by the Chief-Minister. But the Governor can exercise certain discretionary powers independently also.

Other Powers

Receives and tables the report by Controller Auditor General, Act as Chancellor of state universities and appoints Vice-Chancellor.

Chief Minister

- **Article 164(1)** Appointed by Governor, generally the majority party leader is appointed. A Chief Minister is the elected Head or Government of the State and is vested with most of the executive power.
- He enjoys the supports of legislators of the political party or coalition commanding an assembly majority.
- The Governor is the **Nominal Executive** (*de-jure executive*) and the Chief Minister is the **Real Executive** (*de-facto executive*).
- There are no educational or other qualification about his appointment. Under the Constitution, all that is needed is that such a person is a citizen of India and possesses such qualifications, as are required for becoming a member of the Legislative Assembly.
- Such a person could be Member of either House of the Legislature or even an outside though in case he is not a Member of State Legislative can be appointed CM, but he has to get himself elected within 6 months otherwise would have to be removed.
- The Governor may first appoint the Chief Minister then ask him to prove his majority in the Legislative Assembly within a reasonable period.
- If the Chief Minister resigns, entire ministry resigns.

Advocate General

- Article 165 of the Constitution provides for the office of the Advocate General for the states. He is the highest law officer in the state and appointed by the Governor.
- He must be a person who is qualified to be appointed a judge of a High Court. The term of office of the Advocate General is not fixed by the Constitution. He holds office during the pleasure of the Governor.

THE STATE LEGISLATURE

- Every State has a Legislature. Some of the State Legislatures have two houses Legislative Assembly (Vidhan Sabha), the Lower House and Legislative Council (Vidhan Parishad), the Upper House.
- **States having Bicameral Legislature** Uttar Pradesh, Bihar, Jammu and Kashmir, Maharashtra, Karnataka and Andhra Pradesh. State Legislative Council can be created and abolished by the Parliament on the recommendation of Legislative Assembly.

Legislative Council

It is known as Upper House, it cannot be dissolved. The maximum strength of the council is fixed at one-third of the total strength of the Assembly and minimum strength is Legislative Council are elected in accordance with the system of proportional representation by means of the Single Transferable Vote.

Strength and Election

- It cannot be larger than one-third of the Legislative Assembly of the State. One-third are elected by the local government bodies like Zila Parishad, Municipalities. Another one-third are elected by Members of Legislative Assembly of the state. One-twelfth are elected by a constituency of graduates and another one-twelfth by teachers of secondary schools, colleges and universities.
- One-sixth of the total members are nominated by the Governor from the persons of special knowledge or practical experience of literature, science, art, cooperative movement and social service.

Qualifications and Tenure

A citizen of India, age not below 30 years. Chairman and Vice-Chairman elected from among its members. 6 years tenure with one-third members retiring every 2 years.

Legislative Assembly

- Like the Lok Sabha, the Legislative Assembly is not a continuing chamber. Its normal term is 5 years from the date of its first meeting after the General Election. It can be dissolved before its term too. Term can be extended by 1 year during national emergency.
- The Constitution says that the Governor may appoint one member from the Anglo-Indian Community if it is not adequately represented in the house.
- Rest of the member are elected directly by the people from the territorial constituencies. **Article 170(1)** holds that the Legislative Assembly of each state shall consist of not more than 500 and not less than 60, members chosen by direct election from territorial constituencies in the State.

Strength

The strength of Legislative Assemblies cannot be more than 500 and not less than 60.

Qualifications

- A citizen of India, age not less than 25 years. Speaker and Deputy Speaker chosen from among its members.
- Must not possess other qualifications prescribed by Parliament, under the Representation of People Act, 1951.

The Union Territories

- The states are the members of the federal system in India and share a distribution of power with the centre. On the other hand, the union territories are those areas which are under the direct control and administration of the Central Government.
- Articles 239 to 241 in Part VIII of the Constitution deal with the union territories.
- Every Union Territory is administered by the President acting through an administrator appointed by him.
- The President can specify the designation of an administrator; it may be Lieutenant Governor or Chief Commissioner or Administrator.
- At present, it is Lieutenant Governor in the case of Delhi, Puducherry and Andaman and Nicobar Islands and Administrator in the case of Chandigarh, Dadra and Nagar Haveli, Daman and Diu and Lakshadweep.
- The Union Territories of Puducherry (in 1963) and Delhi (in 1992) are provided with a Legislative Assembly and a Council of Ministers headed by a Chief Minister.

Jammu and Kashmir (Special Status)

- Article 370 gives temporary, transitional and special provisions to Jammu and Kashmir. Special status has been given to this state at the time of its accession to India.
- Jammu and Kashmir has its own **separate Constitution** which was formed by its own Constituent Assembly.
- The Parliament of India has no power to form laws regarding Jammu and Kashmir on the subjects of State List. Besides, this all the residuary powers invest in the legislatures of Jammu and Kashmir.
- It exercises **dual citizenship**. Person, who does not belong to the State of Jammu and Kashmir cannot purchase any immovable property in this state.
- In case of constitutional breakdown, besides the President Rule, the Governor's Rule can also be imposed for a maximum period of six months.
- The Union of India has no power for the proclamation of Financial Emergency in Jammu and Kashmir.
- The Indian Parliament has no power to change the name, boundary or territory of Jammu and Kashmir without the consent of State Legislature.
- Only National Emergency proclaimed on grounds of war and external aggression shall have automatic extension to Jammu and Kashmir. On the contrary, National Emergency proclaimed on the basis of armed rebellion shall not be automatically extended to Jammu and Kashmir.
- Articles 19 (1) and 31 (2) have not been abolished for this state and hence, right to property shall stand guaranteed to the people of Jammu and Kashmir.
- Part IV (DPSP) and Part IV A (Fundamental Duties) are not applicable to the State of Jammu and Kashmir.

JUDICIARY

- We have an integrated judicial set-up (taken from Government of India Act, 1935) in our country. The Constitution of India is the supreme legal document.
- It's **Part V** and **Part VI** dealing with Union and State Governments respectively.
- Indian Constitution has established an integrated judicial system with the Supreme Court at the top.
- Judiciary is independent of other two organs of the state i.e. executive and legislature. Independence of the judiciary does not imply arbitrariness or absense of accountability.
- Judiciary is a part of the democratic structure of the country. It is therefore, democratic traditions and to the people of the country.
- The organisation of the subordinate judiciary varies from state to state.

Supreme Court of India (Articles 124-147)

- The Supreme Court came into being on 28th January, 1950. Supreme Court is a federal court. It's only seat located at Delhi. It's bench can be established at other places also.
- It is the Apex court of justice in India. Having one Chief Justice + Not more than 30 other judges (after amendment, earlier 25).

Appointment

The judges of the Supreme Court are appointed by the President. The Chief Justice is appointed by the President after consultation with such judges of the Supreme Court and High Court as he/she deems necessary.

Qualifications

A citizen of India. Any person who has been a judge of a High Court for 5 years (or) an eminent jurist or has been a practising advocate in High Court for 10 years.

Functions

It hears certain appeals of civil and criminal cases from the High Court. It hears disputes between the Union Government and the states. It can issue writs for the enforcement of any of the Fundamental Rights conferred by the Constitution.

Term and Removal of a Judge

- The judges hold the office upto the age of 65 years. A Judge of Supreme Court can only be removed from office by an order of the President after an address by each House of Parliament supported by a majority of the total membership of the house and by a majority of not less than two-third of the members present and voting on the ground on
 - i. proved misbehaviour
 - ii. incapacity

The Constitution of India has ensured that

- they can be removed by Parliament (by complex procedure).
- after retirement, they cannot practise in any Indian Court.

Salary

- Salary is given from consolidated fund, which is not deducted (except during financial emergency).
- Chief Justice's salary ₹ 1 lakh.

Independence of Judges

- Decisions and actions of judges cannot be criticised.
- Any type of conduct of judges cannot be discussed in Parliament except in the case of removal.
- Chief Justice of India is appointed on seniority basis.

Jurisdiction

The functions and responsibilities of the Supreme Court are defined by the Constitution.

The jurisdiction of the Supreme Court may be categorised as

Original Jurisdiction (Article 131)

- Disputes between the Government of India and one or more states.
- Dispute between the Government of India and one or more states on one side and one or more state on the other side.
- Disputes between two or more states (e.g. Cauvery water dispute between Karnataka, Tamil Nadu and Puducherry).



PUBLIC INTEREST LITIGATION (PIL)

In PIL the court gives judgement in public interest on such matters as the basic needs of life, exploitation, environment, child labour, exploitation of women etc. If some person or institution just informs the court. The court investigate the matter and decides in the context of facts. Such cases constitute what is PIL?

SP Gupta vs Union of India Case, 1982, Supreme Court held that any member of the public can approach the courts for violation of Fundamental Rights of others, (who may not have sufficient resources to reach the courts) even through a post card, **PN Bhagwati** and **CR Krishna Aiyar** were the prominent justices to have laid down the conditions for such appeals, popularly called **Public Interest Litigation (PIL)**. But PILs must work for public interest alone. The concept of PIL originated in USA.

Writ Jurisdiction

- The Constitution has constituted the Supreme Court as the guarantor and defender of Fundamental Rights of the citizen.
 - **Habeas Corpus** Implies that a person imprisoned or detained by the law can enquire from the court of law, under what authority he has been imprisoned or detained.
 - **Mandamus** Literally means a 'Command' issued by the court commanding a person or a public authority to do or forbade to do something in the nature of public duty.
 - **Quo Warranto** An order issued by the court to prevent a person from holding office to which he is not entitled and to oust him from that office.
 - **Certiorari** It is a writ, which orders the removal of a suit from an inferior court to superior court.
 - **Prohibition** By a higher court to stop proceedings in a lower court on the ground of overstepping of jurisdiction or isolation of the rules of natural justice.

Advisory Jurisdiction (Article 143)

As the highest court in the country, the Supreme Court can be consulted by the President on certain issues, if the President feels that an important legal question or fact of public interest has come to him he can ask the Supreme Court for its advice. The Supreme Court in such cases would consider it and give its opinion to the President, but such an opinion is not binding on the President.

Appellate Jurisdiction

(Articles 132 (1), 133 (1) or 134)

Three type of appeals can be made to the Supreme Court, these are as follows :

- i. There can be an appeal against any decision or order of a High Court, if the High Court gives a certificate that it involves some question of interpretation of the Constitution.
- ii. There can be an appeal against civil cases decided by a High Court, if the High Court gives a certificate that the case involves a substantial question of law.
- iii. In respect of criminal cases too there can be an appeal to the Supreme Court. If a High Court has on appeal reversed an order of acquittal of an accused person and sentenced him to death or if by withdrawing a case from the lower court to itself it has sentenced a person to death, one can go for an appeal to Supreme Court.

Review Jurisdiction (Article 137)

The Supreme Court can review any judgement given by itself. The Supreme Court is also given the power under our Constitution to transfer a case that is being decided in any court and bring it to itself. If it feels that an important question of law is involved, Parliament can confer on the Supreme Court more powers by passing a law.

Election Jurisdiction

The Supreme Court has obligation to decide on the disputes regarding the election of the President and the Vice-President.

Court of Record (Article 129)

All the decisions and proceedings of the Supreme Court are kept as records and are quoted as precedents in the court. The court can punish for its own contempt, if any one does not abide by its decision. So, the Supreme Court is called a 'Court of Record'.

Power of Judicial Review

Supreme Court has power to make Judicial review of constitutionality of legislative enactments and executive orders of both centre and state. If the orders are found violative, they can be declared null and void.

High Courts

The Constitution provides High Court for every state. But even two or more states can have a common High Court if provided by the Parliament.

- i. Presently there are 24 High Courts in India (21+3 State High Courts). Meghalaya, Manipur and Tripura are the new High Courts.
- ii. The High Court consists of a Chief Justice and some other judges appointed by the President of India.
- iii. There is no upper limit on the number of judges.

Qualifications

He/she must be a citizen of India. Must have held a judicial office for at least 10 years or be a distinguished jurist in the opinion of the President.

Or

He should have for at least 10 years been an advocate in High Court or of two or more such courts in succession.

Appointment

- For the appointment of the Chief Justice of a High Court the President consults the Chief Justice of India and Governor of the concerned state. Other judges are also appointed according to the same procedure.
- The Constitution bench of Supreme Court held that the opinion of Chief Justice (Supreme Court and High Court) will be given priority in both the appointment as well as transfer of senior judges.

Term, Boundation and Removal

- A judge of High Court holds office till he attains the age of 62 years. Their term can be shortened, if he gives resignation and can be cut short if removed by the President.
- Retired Judge of a High Court can practice in the High Court from where he has been retired and only in the Supreme Court.

- Judges of one High Court can be transferred to another High Court.
- They can be removed through the same procedure as followed in the case of a Judge of the Supreme Court (Parliament passes the resolution by a two-third majority of its members present and voting).

Jurisdiction of High Court

At present, a High Court enjoys the following jurisdiction and powers

- Original jurisdiction
- Writ jurisdiction
- Appellate jurisdiction
- Supervisory jurisdiction
- Control over subordinate courts

Jurisdiction and Seats of High Courts

Name	Established in the Year	Territorial Jurisdiction	Seat
Madhya Pradesh	1956	Madhya Pradesh	Jabalpur (Benches at Gwalior and Indore)
Bombay	1862	Maharashtra, Dadra and Nagar Haveli, Goa, Daman and Diu	Mumbai (Bench at Nagpur, Panaji and Aurangabad)
Calcutta	1862	West Bengal and Andaman and Nicobar islands	Kolkata (Circuit Bench at Port Blair)
Madras	1862	Tamil Nadu and Puducherry	Chennai
Allahabad	1866	Uttar Pradesh	Allahabad (Bench at Lucknow)
Karnataka	1884	Karnataka	Bengaluru
Patna	1916	Bihar	Patna
Orissa	1948	Odisha	Cuttack
Guwahati	1948	Assam, Nagaland, Mizoram and Arunachal Pradesh	Guwahati (Benches at Kohima and Aizawl and Itanagar)
Rajasthan	1949	Rajasthan	Jodhpur (Bench at Jaipur)
Andhra Pradesh	1954	Andhra Pradesh and Telangana	Hyderabad
Kerala	1958	Kerala and Lakshadweep	Ernakulam
Jammu and Kashmir	1928	Jammu and Kashmir	Srinagar and Jammu
Gujarat	1960	Gujarat	Ahmedabad
Delhi	1966	Delhi	Delhi
Punjab and Haryana	1875	Punjab, Haryana and Chandigarh	Chandigarh
Himachal Pradesh	1971	Himachal Pradesh	Shimla
Sikkim	1975	Sikkim	Gangtok
Uttarakhand	2000	Uttarakhand	Nainital
Jharkhand	2000	Jharkhand	Ranchi
Chhattisgarh	2000	Chhattisgarh	Bilaspur
Manipur	2013	Manipur	Imphal
Meghalaya	2013	Meghalaya	Shillong
Tripura	2013	Tripura	Agartala

Subordinate Courts

Articles 233 to 237 in Part VI of the Constitution makes the provision to regulate the organisation of subordinate courts and to ensure their independence from the executive. The appointment, posting and promotion of district judges in a state are made by the governor of the State in consultation with the High Court.

Lok Adalat

Lok Adalat is one of the alternative dispute redressal mechanisms, it is a forum where disputes or cases pending in the court of law or at pre-litigation stage are settled or compromised amicably. Lok Adalats have been given statutory status under the Legal Services Authorities Act, 1987. The First Lok Adalat was held in Gujarat in 1982.

LOCAL SELF GOVERNMENT

- It deals with the Panchayats and Municipalities. *It consists of two parts*
 - i. It contains 29 subjects related to Panchayati Raj (Administrative powers) and added by 73rd Amendment Act, 1992, contains a new schedule 'Schedule Eleven'.
 - ii. It contains 18 subjects related to Municipalities (Administrative powers) and added by 74th Amendment Act, 1992, contains a new schedule, 'Schedule Twelve'. Panchayati Raj in India signifies the system of rural local self government. Local government is a subject of the State List.

Various recommendations for Panchayati Raj Institution, are as follows :

- **Balwant Rai Mehta Committee 1957** establishment of three tier Panchayati Raj System, which includes Zila Parishad at District level, Panchayati Samiti at Block level and Gram Panchayat at Village level.
- **Ashok Mehta Committee** The three tier system should be replaced by two tier system that is Zila Parishad at District level and below it the Mandal Panchayat consisting of a group of village comprising a population of 15000 to 20000.
- **LM Singhvi Committee 1986** The Panchayati Raj Institution should be constitutionally recognised, protected and preserved.
- **PESA (Panchayat Extension to Schedule Areas) Act, 1996** or PESA law enacted by the Government of India they cover the schedule areas which are not covered in the 73rd Amendment of Panchayati Raj Act of Indian Constitution.